

case being his heir at law : yet adjudged, that by the devise *B.* took an estate for life only. (There is only a simple order of dismissal, Reg. Lib. 1682, B. fol. 107. Entered *Peyton v. Vanacker.*)

[66] Case 62.—FRANKLAND *versus* HAMPDEN *et Al.* [1682.]

Forged deeds or writings not to be ordered *per Cur'* to be torn or defaced, but kept so, that the king may proceed thereon against the criminal.

The plaintiff this day making default, and upon opening of the cause it appearing that the plaintiff had forged several notes or writings in the defendant's name, it was prayed by the defendant's counsel, that such bills or notes might be torn or obliterated : but Mr. *Solicitor-General* observed to the court, that a forged deed or writing cannot be torn or defaced by law, but must be kept so that the king may proceed upon it against the criminal.(1)

(1) It appears that several alterations had been made in a certain ledger book, produced in the cause, and also that a note in question was a forged note, "Whereupon it was referred to the *Master* to certify the alterations made in the said book, and "to make the figures therein altered as they were before such alterations were made, "and that the said note be brought into court to the end the same may be made use of "against the said plaintiff, Dr. *Frankland*, on an information or otherwise as there "shall be occasion, and the said *Master* was to tax the defendants their full costs, "to be ascertained by the defendant's own oath in respect of those abuses." Reg. Lib. 1682, A. fol. 210. So upon *non est factum* at law on forged bond, vide *Fitch v. Wells*, Hill. 4th Anne, B. R. Salk. 215. Otherwise upon a collateral issue, *ibid.* See vide *Williams & Ux. v. Hulie & Ux.* 1 Sid. 131. Where the bond on *non est factum* found, though suspected to be forged, was delivered to the plaintiffs, and in *Gerrard v. Phiton*, *ibid.* 170, a deed was found on trial to be forged, and carried into the Court of Chancery, the defendant having a year given to him for a new trial, which being had and a similar verdict thereon, the deed was cancelled and destroyed.

Case 63.—GIBSON & Ux' *versus* KINVEN & Al'. [1682.]

Personal estate devised to the wife, upon trust not to dispose thereof but for the benefit of her children. She by will gives 5s. only to one child. Decees the estate to be divided equally.

The case was, that one *Harris* in his life-time being possessed of a considerable personal estate, and having issue four children, *viz.* two sons and two daughters, and *Mary* one of his daughters being now married to the plaintiff *Gibson*, and *Ann* his other daughter to the defendant *Kinven*, he made his last will and testament in writing, and thereby devised several particular legacies to each of his children, and gave his ready money, goods, plate and household stuff (and personal estate, R. L.) to his wife, *upon trust and confidence that she would not dispose thereof but for the benefit of her children.*

The wife after the death of her husband made her will, and therein calling herself his executrix and residuary legatee, she gives several legacies to some of her children, and but 5s. only to the plaintiff and her children, and devises all the rest of her estate to her son *Bartholomew*. (The statement of the bill is, "she was prevailed on to make "her will, and to give all her estates and some small legacies to *Bartholomew*, her son, "and made the defendants executors." R. L.)

The bill was to relieve herein, the plaintiff insisting that the wife having devised all this estate to one of her [67] children *only*, this was a void bequest, and a breach of her trust, and that therefore the plaintiffs ought to be let into a full third part of the said father's estate intrusted with the mother as aforesaid ; one of the said brothers after the making of the said father's will dying in his lifetime.

The defendants by answer confessed the will of *Harris* the father, and did admit that one of the brothers was dead in his lifetime ; but set forth further that the plaintiff had by some means disobliged her mother in her lifetime : and though they had endeavoured to reconcile them, and to persuade the mother to leave the plaintiff her daughter a better legacy, yet they could not prevail with her to do it. And further say, that about